

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: June 25, 2026 @ 1:30 PM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	ABNG Real Estate Investment LLC vs. Moderna Design Builders Inc 2025-01517652	Motion to Strike Answer Off calendar. See notice filed 6/2/26 (ROA 106).
2	Ace Property and Casualty Insurance Company vs. Northwood Villas Maintenance Corporation 2024-01439117	Motion for Summary Judgment and/or Adjudication Cross-Defendant Truck Insurance Exchange's Motion for Summary Judgement is DENIED. Cross-Defendant's alternative Motion for Summary Adjudication is DENIED as to Issues 1 and 2. Cross-Complainant's evidentiary objections are OVERRULED. Cross-Defendant's Request for Judicial Notice is GRANTED. (Evid. Code §452, subd. (d) [court records].) The Court does not take judicial notice of the truth of the contents of any of the court filings Cross-Defendant requests to be judicially noticed. Cross-Defendant has met its initial burden to show that all of Cross-Complainants causes of action alleged against Cross-Defendant are without merit. (Code Civ. Proc. §437c, subd. (p)(2) [moving party's burden]; <i>Aguilar v. Atlantic Richfield Company</i> (2001) 25 Cal.4th 826, 850-851 [same].) Cross-Defendant has met its burden by showing (1) that its duty to defend terminates once the limits of insurance provided in the primary and umbrella policies has been exhausted (Cross Defendant's SSUMF Nos. 2, 4-9); (2) that it has exhausted all coverage in the settlement of the underlying Lambert action (Cross-Defendant's SSUMF Nos. 33, 38); and (3) there were no other pending claims against Cross-Complainant at the time of the settlement of the Lambert Action (Cross-Defendant's SSUMF Nos.). Cross-Complainant has met its shifted burden to establish a triable issue of material fact. Cross-Complainant argues that Cross-Defendant's conduct in offering the policy limit to settle the <i>Lambert</i> action without obtaining a release from a right to indemnity from Cross-Complainant's co-defendant in the Lambert action at the time of settlement amounts to a breach of the insurance agreement. Specifically, Cross-Complainant contends there is a triable issue regarding Cross-Defendant's knowledge of the potential subrogation claim and Cross-Defendant's failure to inform Cross-Complainant of the potential subrogation claim prior to finalizing the settlement of the Lambert Action. (See Cross-

Complainant's SSAUMF Nos. 7-16.)

Cross-Defendant argues that it cannot be held liable for a bad faith breach of insurance agreement because it

"What is good faith is essentially a question of fact." (*Kinder v. Western Pioneer Ins. Co.* (1965) 231 Cal.App.2d 894, 900.) Here, the questions of whether Cross-Defendant's decision to agree to the settlement of the *Lambert* action despite being aware of Ace's intent to pursue subrogation against Northwood and Cross-Defendant's attempt to apprise Cross-Complainant of Ace's intent to seek subrogation by sending a letter to Powerstone were reasonable conduct under the circumstances are questions of fact that should be resolved at trial. The Court is not going to engage in weighing the Parties' respective evidentiary showings to determine whether Cross-Defendant's conduct in settling the Lambert Action without obtaining a waiver of subrogation from Ace was reasonable.

Cross-Defendant relies upon *Aetna Casualty & Surety Co. v. Superior Court* (1980) 114 Cal.App.3d 49. The Court finds *Aetna* to be distinguishable because in that case, the subsequent wrongful death claim had not accrued at the time of the original settlement. Here, on the other hand, it is not disputed that Cross-Defendant was aware of Ace's intent to seek subrogation with respect to the funds it paid as part of the settlement of the Lambert Action.

The Court finds Cross-Complainant's citation to *Coe v. State Farm Mutual Auto. Ins. Co.* (1977) 66 Cal.App.3d 981 to be more persuasive. "When a claimant offers to settle an excess claim within policy limits .. the carrier is required to evaluate the settlement offer in good faith, and good faith requires it to Consider the interest of the assured equally with its own." (*Id.* at 994.) In *Coe* an insurer's acceptance of an offer which would have left its insured exposed to a recoupement action was held to be a breach of the implied covenant of good faith. While *Coe* did not specifically deal with a subrogation claim by a co-defendant, the court finds the situation presented in *Coe* to be sufficiently analogous to warrant denial of the motion. The question of whether Cross-Defendant's conduct in accepting the offer in light of its knowledge of Ace's intent to seek subrogation and the reasonableness of Cross-Defendant's provision of notice of Ace's intent to Cross-Complainant are questions of fact that preclude finding no liability as a matter of law.

With respect to the second cause of action for declaratory relief,

		the Court finds that the declaratory judgment Cross-Complainant seeks is an appropriate subject for a declaratory relief action. Cross-Defendant argues that declaratory relief is not necessary or proper because the Cross-Complaint only seeks to redress past wrongs, but the Court finds there is an ongoing ripe controversy as to the Parties respective rights and duties under the relevant insurance policies as it pertains to Cross-Defendant's duty to defend Cross-Complainant with respect to Ace's subrogation claim. Accordingly, the motion is denied as to both noticed issues. Cross-Complainant shall provide notice of this ruling.
3	Casate vs. Allview Real Estate 2026-01542936	Demurrer to Complaint Motion to Strike Complaint Continued. See minute order dated 6/23/26 (ROA 37).
4	Gallagher vs. Oak Tree Business Systems, Inc. 2021-01232788	Motion for Bifurcation Off calendar. See minute order dated 6/11/26 (ROA 167).
5	Garay vs. L'Abri Management, Inc 2026-01553144	Demurrer to Complaint Defendants L'Abri Management, Inc.; Beccy Hasselbarth, and individual and as Trustee of the Beccy Hasselbarth Trust dated February 1, 2018; and Fay Gallegos' Demurrer to the Complaint is OVERRULED in part and SUSTAINED in part. Fifth Cause of Action – Intentional Infliction of Emotional Distress To state a cause of action for Intentional Infliction of Emotional Distress ("IIED"), the plaintiff must allege: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (<i>Yau v. Santa Margarita Ford, Inc.</i> (2014) 229 Cal.App.4th 144, 161.) For conduct to be outrageous for purposes of IIED, the conduct must be so extreme as to exceed all bounds of that usually tolerated in a civilized society. (Id.) In addition, "[the defendant's] conduct [must be] directed at the plaintiff, or occur in the presence of a plaintiff of

	whom the defendant is aware.” (<i>Christensen v. Superior Court</i> (1991) 54 Cal.3d 868, 903 (emphasis added).) Here, the Complaint alleges observed cockroaches in the home when they moved into the property in 2023. (Complaint, ¶ 23.) In January 2025, they began experiencing a cockroach infestation and contacted the property manager. (Complaint, ¶ 28.) The infestation contaminated Plaintiffs’ food, dishes, cookware, furniture, clothing, appliances, pet food containers, and other personal belongings. (Complaint, ¶¶ 26, 33-40, 71-73, 143.) Plaintiffs repeatedly informed Defendants about the cockroach infestation and that it was worsening. (Complaint, ¶ 28.) Defendants sent pest control technicians to address Plaintiffs’ complaints, but they were not sufficiently addressed. (Complaint, ¶¶ 32, 62.) Plaintiffs also allege ongoing plumbing issues, such as leaks, that were not properly addressed. (Complaint, ¶¶ 58-62.) The leaks caused moisture to accumulate inside Plaintiffs’ unit. (Ibid.) Defendants would occasionally send maintenance personnel to inspect the issue, but they resulted in no meaningful repairs. (Complaint, ¶ 62.) Defendants argue that sending pest control technicians, plumbers, and maintenance personnel in an effort to address Plaintiffs’ complaints is hardly the type of conduct that is “not to be tolerated in a civilized society.” However, whether a landlord’s failure to remediate a habitability issue on leased premises is sufficiently extreme and outrageous to support a lessees’ cause of action for IIED is a question of fact, which cannot be resolved at the pleading stage. (See <i>Burnett v. Chimney Sweep</i> (2004) 123 Cal.App.4th 1057, 1068-1069.) <i>Erlach v. Sierra Asset Servicing, LLC</i> (2014) 226 Cal.App.4th 1281, 1299.) Thus, it cannot be said that Defendants’ failure to properly remediate the cockroach and plumbing issues is not extreme or outrageous conduct, especially where, as here, Plaintiffs allege a persistent presence of cockroaches in their residence. Additionally, Plaintiffs have sufficiently alleged emotional distress as a result of Defendants’ conduct. The Complaint states Plaintiffs suffered panic, severe emotional distress, sleep disturbances, persistent fear, ongoing anxiety, significant embarrassment and humiliation as a result of conditions at the subject property. (Complaint ¶¶ 142, 144-145.) (See <i>Garcia v. Myllya</i> (2019) 40 Cal.App.5th 990, 1000 [finding that extreme pest infestations and
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	other poor building conditions could support the tenants’ award of emotional distress damages.].) Accordingly, the demurrer to the fifth cause of action is OVERRULED. Sixth Cause of Action – Negligent Infliction of Emotional Distress The negligent causing of emotional distress is not an independent tort, but the tort of negligence to which the traditional elements of duty, breach of duty, causation, and damages apply. (<i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1072.) Plaintiffs’ NIED claim is duplicative of their negligence claim as both causes of action allege emotional distress damages. The Fourth Appellate District has recognized duplicative as a basis for sustaining a demurrer. (<i>Palm Springs Villas II Homeowners Assn., Inc. v. Parth</i> (2016) 248 Cal.App.4th 268, 290.) Accordingly, the demurrer to the sixth cause of action is SUSTAINED without leave to amend. Motion to Strike Defendants L’Abri Management, Inc.; Beccy Hasselbarth, and individual and as Trustee of the Beccy Hasselbarth Trust dated February 1, 2018; and Fay Gallegos’ Motion to Strike is DENIED. Defendants move to strike allegations in the Complaint related to punitive damages. Code of Civil Procedure section 436 provides, “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading, (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” A motion to strike may be used to remove a claim for punitive damages that is not adequately supported by the facts alleged in the complaint. (<i>Cryolife, Inc. v. Superior Court</i> (2003) 110 CalApp.4th 1145; <i>Kaiser Foundation Health Plan, Inc. v. Superior Court</i> (2012) 203 Cal.App.4th 696.) Civil Code section 3294 states that,
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		“In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code, § 3294, subd. (a).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) Here, the Complaint alleges Defendants knew their unit was suffering from severe cockroach infestations, microbial growth, plumbing leaks and structural openings that allowed pests to enter. (Complaint, ¶ 134.) Defendants were repeatedly notified of these dangerous and unsanitary conditions, but chose to ignore the complaints and/or failed to meaningfully repair or remediate the conditions. (Complaint, ¶ 135-137.) Defendants allowed the cockroach infestation to continue while collecting rent from Plaintiffs, and with a reckless disregard for the probability that Plaintiffs would suffer severe emotional distress from having to live with cockroaches. (Complaint, ¶ 138.) While the Complaint acknowledges Defendants’ attempts to remediate the cockroach and plumbing issues, it also alleges Defendants engaged in “superficial and ineffective responses” and allowed the conditions to persist despite repeated complaints. The cockroaches infiltrated Plaintiffs’ kitchenware, furniture, and personal belongings and even crawled into Plaintiff’s ear. Failure to effectively and promptly remediate the issues could be found to be oppressive and/or malicious. Accordingly, the motion to strike punitive damages allegations is DENIED. Clerk to give notice.
6	Kiani vs. Koffey 2025-01484637	Motion to Appear Pro Hac Vice Continued. See minute order dated 6/23/26 (ROA 259).
7	Jin vs. Bloomingdale's, LLC	CMC Motion for Reclassification Demurrer to Complaint

	2025-01510901	Motion to Strike Complaint All matters off calendar. Case dismissed on 6/11/26.
8	Nationwide Insurance Company vs. Cal-Coast Packing & Crating, Inc. 2025-01501912	CMC Demurrer to Complaint CMC continued. See minute order dated 6/4/26 (ROA 61). Demurrer is off calendar. See notice filed 5/26/26 (ROA 56).
9	Rume Medical Group, Inc vs. Lee M.D 2025-01481522	Motion to Appear Pro Hac Vice Off calendar. See minute order dated 6/23/26 (ROA 117).
10	Zacharda vs. Orange County Youth Sports Association 2020-01149973	Motion for Leave to Amend Plaintiff and Cross-Defendant Kirk Zacharda's motion for leave to file an amended answer is denied. Given the proximity of the Motion for Summary Judgment (MSJ) and trial date, there is prejudice to OCYSA in permitting the amendment that cannot be cured by continuing the current trial date of October 5, 2026. Further, there hasn't been a sufficient showing of diligence or reasonable explanation for the delay in seeking the relief. The court acknowledges that new counsel substituted into this case late last year. Although new counsel does have a duty to investigate the legal and factual sufficiency of claims upon substitution, this duty does not automatically translate into good cause for late amendments. (<i>Primo Hospitality Group, Inc. v. Haney</i> (2019) 37 Cal.App.5 th 165 [Holding the mere act of substituting in as counsel carries no automatic legal consequences with respect to the existing pleadings.]) There is no reasonable explanation as to why the amendment could not have been made sooner. The court may consider permitting the amendment and continuing the current MSJ and trial date if the parties enter into a stipulation to waive the five-year dismissal requirement of California Code of Civil Procedure § 583.310. That section provides that an action shall be brought to trial within five years after the action is commenced against the defendant. The court notes that the parties previously stipulated to waive the section 583.310 requirement for the January 2026 trial date, but the stipulation was specific to the January date. Defendant then requested a continuance of trial on

		two subsequent occasions (ROAs 399, 404 and 430). If the court were to continue the trial date again, another stipulation would need to be executed. OCYSA's objections to the Declaration of Jason D. Goldwater are overruled. The court will inquire as to whether counsel stipulate to extend the 5-year dismissal rule to the trial date of 10/5/26. If the parties do not stipulate, the court will set an OSC re: dismissal of the action under Ca. Civ. Pro. Section 583.310 for 7/2/26 at 1:30 p.m. in this department. Clerk to give notice.
11	Kiani vs. Masimo Corporation 2024-01426785	Status Conference